

No later than **August 10, 2026**, Plaintiff may file a supplemental opposition brief not exceeding seven pages, together with any declarations and exhibits responding to the supplemental declaration of Junior Bolanos and the declaration of Giovanni Saligan filed with Defendant's reply.

No later than **August 24, 2026**, Defendant may file a supplemental reply brief not exceeding seven pages. No further declarations or evidence may be submitted with the supplemental reply.

12. 9:00 AM CASE NUMBER: C24-03132

CASE NAME: SHAWN HOWARD VS. BMCH CALIFORNIA, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY

***HEARING ON MOTION IN RE: FOR LEAVE TO FILE A FIRST AMENDMENT TO COMPLAINT TO ADD NEW PLAINTIFFS**

FILED BY: ABRAHAM, OMAR

TENTATIVE RULING:

This is plaintiffs' motion for leave to file a first amended complaint to add new plaintiffs. It is unopposed.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing." No timely opposition was filed.

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]

Moreover, California courts recognize that a party's failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition "creates an inference that the motion or demurrer is meritorious"); *Herzberg v. County of Plumas* (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, "[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions." See the court's website: <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

The motion is, therefore, granted. The "[Proposed] First Amendment to Complaint to Add New Plaintiffs" shall be filed and served on or before August 31, 2026.